

Amendment to Merchant Application and Agreement ("Amendment")

For good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the undersigned merchant ("Merchant") and Priority Payment Systems LLC ("Processor") hereby agree that the Merchant Application and Agreement which includes the Program Guide, dated on or about _____, 20____ ("Agreement"), attached hereto as Exhibit A to this Amendment, is amended as follows:

1. Notwithstanding anything to the contrary in the Agreement, Merchant represents to Processor that it intends to offer hemp-derived products, excludable from the definition of "marijuana" set forth in 21 U.S.C. section 801, et. seq., of the Controlled Substances Act, as the same may be amended from time to time, to its customers and agrees, in connection therewith, that it will not use the card processing services of Processor (or Merchant's merchant processing account with Processor), for the sale, purchase, delivery, exchange (or refunds related thereto) of any products that could be construed as "marijuana", as that term is defined in the Controlled Substances Act. In addition, Merchant agrees that it will not use the card processing services of Processor (or Merchant's merchant processing account with Processor) in connection with the sale, purchase, delivery, or exchange (or refunds related thereto) of any marijuana products as defined by the Controlled Substances Act, including any marijuana-related products containing tetrahydrocannabinol ("THC") in excess of 0.3 percent by dry weight, or in connection with the sale of any products properly included under Drug Enforcement Agency Drug Codes 7350 or 7360. Merchant agrees that any hemp or hemp-derived products (including cannabidiol) that it sells will be in compliance with all applicable local, state, or federal laws, ordinances or regulations, and the Rules of the Credit Card Associations.

2. Processor may change any term of this Agreement in its sole discretion. Processor reserves the right to freeze or close Merchant's account at any time with or without notice and in its sole discretion.

3. Entire Agreement: This Amendment reflects the entire agreement between the Parties with respect to the subject matter hereof. Unless otherwise modified or amended herein, all other terms and conditions of the Agreement (as amended) shall remain in full force and effect.

Unless otherwise defined herein, capitalized terms used in this Amendment shall have such meanings as set forth in the Agreement.

IN WITNESS WHEREOF, and intending to be legally bound, the Parties indicate their assent to the foregoing terms by signing below, to be effective as of the Effective Date set forth above.

PRIORITY PAYMENT SYSTEMS LLC

("Merchant")

By: _____

Name: _____

Title: _____

Date: _____

By: _____

Name: _____

Title: _____

Date: _____